

BEFORE THE FEDERAL MARITIME COMMISSION

INTERMODAL MOTOR CARRIERS CONFERENCE,
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT
ASSOCIATION, INC., CONSOLIDATED CHASSIS
MANAGEMENT, LLC, CMA CGM S.A., COSCO
SHIPPING LINES CO. LTD., EVERGREEN LINE
JOINT SERVICE AGREEMENT, FMC NO. 011982,
HAPAG-LLOYD AG, HMM CO. LTD., MAERSK
A/S, MSC MEDITERRANEAN SHIPPING
COMPANY S.A., OCEAN NETWORK EXPRESS
PTE. LTD., WAN HAI LINES LTD., YANG MING
MARINE TRANSPORT CORP., AND ZIM
INTEGRATED SHIPPING SERVICES,

Respondents.

FMC Docket No. 20-14

**RESPONDENTS' PETITION FOR ENLARGEMENT
OF TIME TO FILE EXCEPTIONS**

Pursuant to Rule 228 of the Federal Maritime Commission's Rules of Practice and Procedure, 46 C.F.R. §502.228, Respondents hereby petition the Commission for an additional thirty (30) days to file exceptions to and appeal from the February 6, 2023 Initial Decision Partially Granting Summary Decision. The reasons justifying this petition are set forth below.

The Initial Decision Partially Granting Summary Decision, Dkt. No. 20-14 (Feb. 6, 2023) (hereinafter "ID"), which is over 60 single-spaced pages in length, purports to address three separate motions for summary judgment, two motions to strike, and motions for confidential treatment. As noted in the ID, there are 13 respondents in this proceeding, which involves "novel legal arguments based on complex economic theories and extensive expert economist

testimony.” ID at 3. As also noted in the ID, the parties presented 1,048 proposed and disputed facts and the record consists of over 9,000 pages of documents. ID at 3-4. Only parts of the ID’s rulings on summary decision would normally be appealable as a matter of right under Commission Rule 227. However, the ID *sua sponte* granted leave for the parties to appeal denial of all of the motions for summary decision, concluding that the novel and intertwined issues in the proceeding meet the standard for finding interlocutory appeal “necessary ‘to prevent substantial delay, expense, or detriment to the public interest, or undue prejudice to a party.’” ID at 59.

As a result, in addition to Respondents’ right to appeal those portions of the ID granting in part Complainant’s motion for summary decision, Respondents also have leave to appeal the entirety of the denial of Respondents’ motion for summary decision, as well as the denial of Evergreen’s supplemental motion for summary decision. ID at 59 (exceptions and appeal), and ID at 57 (“the parties will be given an opportunity to appeal this decision as a whole prior to determining next steps.”). The appeal will accordingly be a massive undertaking.

In addition to the number of motions, the novel and important legal issues, and the sheer scope of the factual record, Respondents have identified a large number of issues and findings that necessitate preparing and filing exceptions with the Commission, including material errors of law, substantive procedural errors in applying the standards for summary judgment, and numerous material factual findings unsupported by the factual record. Preparing the exceptions will be a massive undertaking, which is further complicated by the fact that there are 13 respondents represented by three separate counsel. The views and positions of all of these parties must be taken into account and reflected in the exceptions that are filed.

Pursuant to 46 C.F.R. §502.71, Respondents have consulted with counsel for Complainant. Complainant indicated it would consent to an extension of seven (7) days, but would oppose a petition for a longer extension. Unfortunately, an extension of seven (7) days is not sufficient in this situation.

In light of the size and scope of the record in this proceeding, the number of parties, and the number and complexity of the legal and factual issues in this proceeding, and for all of the foregoing reasons showing good cause, Respondents respectfully request an enlargement of time to file exceptions until March 30, 2023.

Respectfully submitted,

Dated: February 13, 2023

/s/ Christopher Raleigh

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CERTIFICATE OF SERVICE

I certify that, on February 13, 2023, a true and current copy of the foregoing Respondents' Petition for an Enlargement of Time to File Exceptions was filed via electronic mail with the Secretary of the Federal Maritime Commission, and a copy was served via electronic mail on the following counsel:

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